

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Crl. Appeal No. 81569-J of 2021
(Muhammad Haneef *versus* The State, etc.)

JUDGMENT

Date of hearing: 02.06.2026.

Appellant by: M/s Aftab Hussain Bhatti and Altaf Hussain Bhatti, Advocates.

State by: Ms. Maida Sobia, Deputy Prosecutor General with Afzal A.S.I.

Complainant by: Mr. Faseeh Ullah Khan, Advocate.

AALIA NEELUM, C.J: The appellant, Muhammad Haneef, son of Ghulam Muhammad, caste Ridhani, resident of Chak No.586/G.B., Tehsil Jaranwala, District Faisalabad, has assailed his conviction and sentence recorded by the learned Additional Sessions Judge, Jaranwala, vide judgment dated 30.11.2021, in a private complaint filed under sections 302, 395, 109, 148, 149 P.P.C., at Police Station, City Jaranwala, District Faisalabad. The trial court convicted the appellant, Muhammad Hanif, under section 302(b) P.P.C. and sentenced him to undergo imprisonment for life, with the direction to pay Rs.5,00,000/- as compensation to the legal heirs of the deceased under section 544-A of Cr.P.C. The benefit of section 382-B Cr.P.C. was also extended in favor of the appellant.

2. Feeling aggrieved by the learned trial court's judgment, the appellant has assailed his conviction by filing the instant appeal, Criminal Appeal No. 81569-J of 2021.

3. Briefly, the prosecution story as alleged in the private complaint (Ex. PB) of Alam Sher (PW-1), the complainant, is that there was a conjugal dispute between Amir and Mah Jabeen (son and daughter-in-law of the complainant). On 02.05.2019, Alam Sher (PW-1), the complainant, along with Bashir Ahmad and Muhammad Saleem, went to the house of Muhammad Hanif (father of Mah Jabeen) situated at Chak No.586-G.B. Jaranwala to patch up the matter. Upon seeing them, Muhammad Hanif became angry. Muhammad Hanif had a pistol, while the other two accused persons, Muhammad Rustam Naseer and Salahuddin (sons of Muhammad Hanif), were empty-handed. Muhammad Rustam Naseer and Salahuddin grabbed Muhammad Amir, son of Alam Sher (PW-1), the complainant. Muhammad Hanif fired a shot, which landed on the left flank of Muhammad Amir, and the same caused Muhammad Amir to fall. He was shifted to the hospital, where he succumbed to the injuries. They started getting closer, then Muhammad Hanif and others threatened to kill them too. On hearing their noise, many people started gathering. Muhammad Hanif and others threatened them too. Meanwhile, someone called a rescue 1122 vehicle and took Muhammad Arim to Nankana Sahib Hospital in an injured condition. The complainant's son, Muhammad Amir, died; Alam Sher (PW-1), the complainant, and his companions took him to Civil Hospital Jaranwala. The reason is that Muhammad Hanif wanted a divorce for his daughter from the complainant's son, Muhammad Amir, but the complainant's son refused to divorce her. For this reason, Muhammad Hanif had killed the complainant's son in consultation with his relatives. The body of Muhammad Amir had been kept at Civil Hospital Jaranwala under the custody of Muhammad Saleem (PW-2) and Alam Sher (PW-1); Bashir Ahmed had accompanied the complainant for a report. Action should have taken.

4. Upon receiving information about the occurrence, Muhammad Afzal S.I. (CW-6), the investigating officer, reached Civil Hospital, Jaranwala, where Alam Sher (PW-1), the complainant presented a written application (Ex.PA) to him (CW-6), who incorporated police proceedings

(Exh.PA/2) under the written complaint (Exh.PA) and referred the complaint (Exh.PA) to police station through Liaqat Ali 4381/C (not cited as witness). Upon receiving the complaint (Exh. PA), Shamsheer Ali, ASI (CW-4), formally prepared the FIR (Exh. CW.4/E). After registration of the case, the investigation of this case was conducted by Muhammad Afzal, S.I. (CW-6), who, having found the accused/appellant guilty, prepared a report under section 173 of Cr.P.C.

Being dissatisfied with the result of the investigation, as the investigating officer, being in league with the accused, did not investigate the matter properly and declared the co-accused of the appellant innocent, the complainant was constrained to file a private complaint (Ex.PB). After recording the complainant's cursory evidence and perusing the record, all the accused persons were found to be connected with the commission of the offence, and they were all summoned to face the charge. Thereafter, the trial court formally charge-sheeted the appellant on 05.12.2019, to which he pleaded not guilty and claimed trial. In support of its version, Alam Sher (PW-1), the complainant, produced as many as four (04) witnesses, while the remaining witnesses were summoned as court witnesses, i.e., CW-1 to CW-6.

5. The appellant was also examined in terms of Section 342 Cr.P.C.; he neither opted to appear as his own witness in terms of Section 340(2) nor opted to adduce any evidence in his defense. In response to a particular question of why this case was against him and why the PWs deposed against him, the appellant, Muhammad Haneef, made the following deposition: -

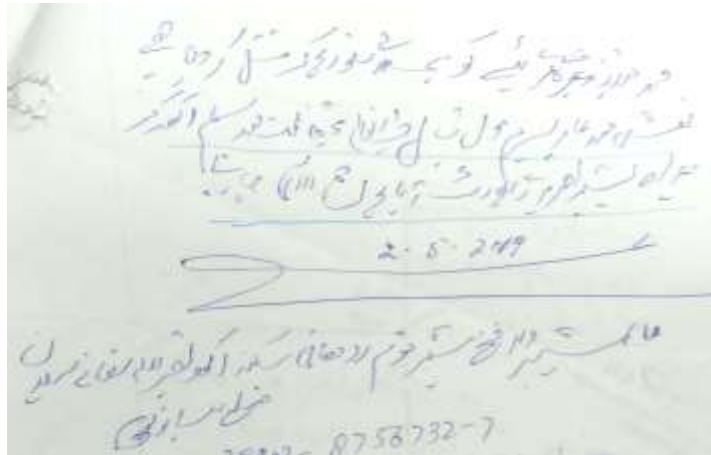
“The deceased Amir while armed with pistol came to our house alone, broke the outer door of our house and slapped my mother. The deceased was emotional and muscular person and he committed suicide by striking himself with his own pistol. Complainant and PWs were not present at the place of occurrence at the time of occurrence. After the incident, police summoned father of the deceased from Mianwali and falsely booked me in this case. Complainant and all the

witnesses deposed falsely against me being close relatives of deceased. I have falsely been implicated in this case. I have not committed murder of deceased Amir and I am absolutely innocent.”

6. After recording evidence and evaluating the evidence on record, and considering the arguments advanced by both sides, the trial court found the prosecution's version proved beyond any shadow of reasonable doubt, resulting in the appellant's conviction in the aforementioned terms.

7. I have heard the arguments advanced by the learned counsel for the parties and have minutely perused the record on the file.

8. In the present case, the occurrence took place on 02.05.2019 at about 03:00 p.m. in the area of Chak No. 5/6-G.B, which falls within the territorial jurisdiction of P.S Ludianwala, Jaranwala. During the incident, Muhammad Amir Ramzan received firearm injuries at 03:00 p.m., and he was shifted to Nankana Sahib Hospital, where he expired. After that, his dead body was shifted to Civil Hospital, Jaranwala, by Alam Sher (PW-1), the complainant, and others. Thereafter, Alam Sher (PW-1)-the complainant, reported the incident to the police through a written complaint (Exh.PA), in the Civil Hospital Jaranwala, to Muhammad Afzal S.I (CW-6)-the investigating officer, who incorporated police proceedings (Exh.PA/2) under the written complaint (Exh.PA) at Civil Hospital, Jaranwala at 06:00 p.m. on 02.05.2019 and referred the complaint to the police station through Liaquat Ali 4381/C (not cited as witness). On receiving the complaint (Exh.PA), Shamsher Ali ASI (CW-4) formally chalked out the FIR (Exh.CW-4/E) at 06:45 p.m. The distance between the place of occurrence and the police station is 10 miles. In the written complaint (Exh.PA), Alam Sher (PW-1), the complainant, has specifically mentioned that he left the dead body of his son Muhammad Amir in Civil Hospital, Jaranwala, under the escort of Muhammad Saleem (PW-2), and he (PW-1), alongwith Bashir Ahmad (given up PW being unnecessary), went to the police station. The scanned copy of the relevant portion of the written complaint (Exh.PA) is as under:-



Contrary to the above, perusal of police proceedings reveals that on receiving information of the incident, Muhammad Afzal S.I (CW-6)-investigating officer, reached Civil Hospital, Jaranwala, where written complaint (Exh.PA) was handed over to him by Alam Sher (PW-1)-the complainant, which was referred to police station through Liaqat Ali 4381/C. In column No.3 of the inquest report (Exh.CW.3/D), the date and time of receiving information of death were mentioned as “امروز قریب 3 بجے دن” whereas on the face of the inquest report (Exh.CW.3/D), particulars of the FIR were mentioned, whereas the FIR was lodged at 06:45 p.m. on 02.05.2019. Even in column No.24 of the inquest report (Exh.CW.3/D), it reveals that the dead body was present lying on the ground, which gets support from the contents of column No.23, where Muhammad Afzal S.I (CW-6)-the investigating officer has specifically mentioned as under: -

مٹی خون آلود بعد تیاری پارسل قبضہ میں لی گئی۔
خول چلیدہ پٹل 30 بور بعد تیاری پارسل قبضہ میں لیا گیا۔

Muhammad Afzal, S.I. (CW-6), the investigating officer, deposed during examination-in-chief that upon receiving the information, he went to Civil Hospital Jaranwala, where he prepared an inquest report (Exh.C.W.3/D) and sent the dead body for post-mortem examination along with the documents, i.e., the injury statement (Exh.C.W.3/C) and the inquest report (Exh.C.W.3/D). The inquest report (Exh.C.W.3/D) reveals that Muhammad Afzal, S.I. (CW-6), the investigating officer, secured blood-stained soil and a 30-bore pistol cartridge through recovery memos. This fact is mentioned in column No. 23 of the inquest report (Exh.C.W.3/D), which creates doubt

about the place where the inquest report (Exh.C.W.3/D) was prepared. Whereas Muhammad Afzal, S.I. (CW-6), the investigating officer, deposed during examination-in-chief that:

“I handed over the dead body along-with injury statement and inquest report to Ehsan Ali/C for escorting the same to the mortuary of THQ Hospital, Jaranwala. Saif Ullah and Shahid Maqsood also accompanied Ehsan Ali/C for identification of dead body. Thereafter, I along-with complainant and PWs reached at place of occurrence. I secured two cartridges of pistol 30 bore into possession vide recovery memo Exh.PC. I also secured blood stained vide recovery memo Ex.PD.”

This aspect of the matter is sufficient to cast doubt on the authenticity of the recovery memos for blood-stained soil and a 30-bore pistol cartridge. The column on the brief history of the case shows that the deceased's body was handed over to Ehsan Ali 5226/C (CW-5) for the postmortem examination, along with the injury statement (Exh.C.W.3/C) and the inquest report (Exh. C.W.3/D). The relevant portion of the inquest report (Exh.C.W.3/D) is reproduced hereunder:-

”نecش مقتول محمد عامر رمضان بعد تیاری کاغذات نقشہ مضروبی و نقشہ صورتحال زیر حفاظت
احسان علی 5226/C بغرض پوسٹمارٹم بھجوائی جا رہی ہے بعد پوسٹمارٹم وجہ موت سے آگاہ
کیا جاوے۔“

It is not mentioned in the brief history of the inquest report (Exh.CW-3/D) which hospital the deceased's body would be shifted by Ehsan Ali 5226/C (CW-5). Upon perusal of the inquest report (Exh.CW.3/D), it appears that the same was prepared at the place of occurrence, i.e., 586/G.B, on 02.05.2019. However, in column No.1 of the inquest report (Exh.CW.3/D) relating to the place where death occurred or the place of recovery of the dead body, it was stated that “the place of occurrence is Chak No.586/G.B where death occurred, THQ hospital, Nankana, dead body recovered from THQ hospital, Jaranwala.” Ehsan Ali 5226/C (CW-5) deposed during cross-examination that he reached the hospital along with the I.O at 05:00 p.m. He (CW-5) deposed during cross-examination that:-

“Dead body was handed over to me at about 05:00 a.m. Alongwith dead body, police papers also handed over to me.”

As per the prosecution’s case, the occurrence took place on 02.05.2019 at 03:00 p.m. Dr. Sohail Tariq (CW-3) deposed during examination-in-chief that:-

“Dead body was identified by Saifullah and Shahid Masood. Dead body was received in the dead house on 03.05.2019 at 04.00 and complete documents were received from police on 03.05.2019 at 08:00 a.m. I performed autopsy at THQ Jaranwala hospital at about 08:50 on 03.05.2019.”

Dr. Sohail Tariq (CW-3) deposed during examination-in-chief that the dead body was received in the dead house at 04:00 (without specifying a.m. or p.m.). Similarly, the doctor did not state whether the autopsy was conducted at 08:50 (also without specifying a.m. or p.m.). Upon perusal of the postmortem report (Exh.CW.3/B), it appears that the dead body was received in the dead house at 04:00 a.m. on 03.05.2019, complete documents were received from the police at 08:00 a.m. on 03.05.2019, and the postmortem was conducted at 08:30 a.m. on 03.05.2019. The postmortem report (Exh.CW.3/B) casts a cloud of doubt on the testimony of Ehsan Ali 5226/C (CW-5). As per the prosecution’s case, the FIR was registered on 02.05.2019 at 06:45 p.m., whereas the postmortem was conducted on 03.05.2019 at 08:30 a.m., with a delay of 13 hours and 45 minutes. As per the postmortem report, death took place at 03:00 p.m. on 02.05.2019.

As mentioned above, Muhammad Afzal, S.I. (CW-6), the investigating officer has written the date and time of the receiving of the information of the death in the inquest report (Exh.CW.3/D) as “امروز قریب 3 بجے دن”, which makes the prosecution's case doubtful as to when the incident took place, because according to Dr. Sohail Tariq (CW-3), the probable time elapsed between injury and death was between 04-hours, whereas between death and postmortem was 10 to 20 hours. If the death was reported at 03:00

p.m., then the incident took place between 12 noon and 03:00 p.m., while Muhammad Saleem (PW-2) deposed during examination-in-chief that the incident took place at 3:00 p.m. Contrary to the above, Alam Sher (PW-1), the complainant, deposed during examination-in-chief that Amir died on the spot. Alam Sher (PW-1)-the complainant deposed during cross-examination that:-

“Police reached at the spot in 15/10 minutes. Amir was died on the spot. However, the police took him to Nankana Hospital on hope. Stay in the hospital was for about 15/10 minutes. In two and a half hours from Nankana, we reached Civil Hospital Jaranwala. We had moved application to the police for registration of case in Jaranwala. ----- I got written application from someone however, I do not remember name of that person. That man was resident of Jaranwala. I was in senses when the application was written. From the hospital, I went to the Police Station.”

Similarly, Muhammad Saleem (PW-2) deposed during examination-in-chief that:-

“Then a man called Rescue-1122. We took Aamir to Nankana hospital. Aamir was dead. Then we brought Aamir to Jaranwala hospital.”

It is the prosecution’s case that the FIR was registered on 02.05.2019 at 06:45 p.m. However, at the time of the autopsy of the deceased Muhammad Amir at 08:30 a.m. on 03.05.2019, the written complaint (Exh.PA) and the FIR (Exh.CW-4/E) were not produced before Dr. Sohail Tariq (CW-3), who conducted the postmortem examination, and his endorsement and signatures are not available on the aforementioned documents. Dr. Sohail Tariq (CW-3), deposed during his examination-in-chief as under:-

“I also endorsed injury statement Ex.C.W.3/C & inquest report Ex.C.W.3/D. On the injury statement Ex.C.W.3/C, my signatures and stamp is Ex.C.W.3/C/1. Similarly, on the inquest report my signatures and stamp is Ex. P C.W.3/D/1.”

Admittedly, the FIR was registered at 06:45 p.m. on 02.05.2019, and the autopsy was conducted at 08:50 p.m. on 03.05.2019, but the Medical Officer did not sign the FIR during the postmortem examination. This indicates that the FIR had not yet been prepared; rather, it was prepared subsequently, and the FIR is therefore ante-timed.

9. There is also a contradiction between the statements of prosecution witnesses about shifting the dead body to the hospital. Alam Sher (PW-1)-the complainant deposed during cross-examination that:-

“Police reached at the spot in 15/10 minutes. Aamir was died on the spot. However the police took him to Nankana hospital on hope.”

Whereas Muhammad Saleem (PW-2) deposed during cross-examination that:-

“Police arrived at the spot 20/15 minutes later and stayed at the spot 15/10 minutes. Then police went to the hospital and from there to the civil hospital, Tehsil Jaranwala. Deceased Aamir was taken to Nankana hospital by Rescue 1122 and not by the police. The dead body was taken by private ambulance from Nankana to civil hospital Jaranwala.”

Muhammad Afzal S.I (CW-6)-the investigating officer deposed during examination-in-chief that:-

“On the same day, after receiving information qua the occurrence, I along-with constable Ehsan Ali, Liaqat and Kamran reached at Civil Hospital Jaranwala, where Alam Sher complainant present before me an application Ex.PA. I initiated police proceeding Ex.PA/2 and forwarded the same to Police Station through Liaqat Ali/C for registration of case. Therefore, I examined the dead body of deceased, prepared injury statement Exh.C.W.3/C as well as inquest report Exh.C.W.3/D. I handed over the dead body along-with injury statement and inquest report to Ehsan Ali/C for escorting the same to the mortuary of THQ Hospital, Jaranwala. Saif Ullah and Shahid Magsood also accompanied Ehsan Ali/C for identification of dead body.”

During cross-examination, Muhammad Afzal S.I (CW-6)-investigating officer deposed that:-

“I reached at alleged place of occurrence at about 06:30 p.m.-----When I reached at alleged place occurrence, dead body had already been shifted from there. In Civil Hospital, Alam Sher had presented application before me. ----- Till 06:15 p.m., I prepared injury statement and inquest report. I remained at alleged place of occurrence for about 03-hours.”

According to the prosecution’s case, the FIR was registered at 06:45 p.m., whereas Muhammad Afzal, S.I. (CW-6), the investigating officer, deposed during cross-examination that he prepared an injury statement and an inquest report by 06:15 p.m. Then, mentioning the particulars of the FIR on the face of the inquest report creates doubt about the time of reporting of the incident. It is not the prosecution's case that Liaquat Ali 4381/C (not cited as a witness), who took the complaint (Exh.PA) to the police station, returned to the place of the occurrence after the FIR was registered and that the details were recorded on the documents. All the above facts raise doubt about the presence of the prosecution witnesses at the place of occurrence. Admittedly, the prosecution witnesses, i.e., Alam Sher (PW-1), the complainant, and Muhammad Saleem (PW-2), the eyewitness, were not residents of the locality where the occurrence took place. Alam Sher (PW-1), the complainant, deposed during his examination-in-chief that:

“Two years ago, I alongwith Bashir and Saleem went to Muhammad Hanif’s house at Chak No.586/G,B Jaranwala to patch up the dispute and upon seeing us, Hanif became angry and said that he would get his daughter divorced.”

Similarly, Muhammad Saleem (PW-2) deposed during his examination-in-chief that:-

“On 02.05.2019, at about 03:00 p.m., I along with Bashir, Aamir and Alam Sher went to the house of Muhammad Haneef at Chak No.586/G.B for reconciliation.”

The above depositions of prosecution witnesses suggest that they are chance witnesses because, as per the Doctor, the duration between injuries and death of the deceased was between 04-hours. If the prosecution witnesses had been present at the place of occurrence, they would have tried to save the deceased's life. In a criminal case, it was the prosecution's burden to prove the accused's involvement beyond a reasonable doubt.

All these circumstances, in my view, cast a serious doubt on the testimony of Alam Sher (PW-1), the complainant, and Muhammad Saleem (PW-2). The appellant is entitled to the benefit of the doubt on that score. Considering all these facts, I have no hesitation in concluding that the prosecution has not been able to prove on record that the incident was reported at the time claimed, and that the witnesses were truthful. In light of these facts, this court is of the opinion that the prosecution has withheld the true genesis of the occurrence. The prosecution has failed to bring home the charges framed against the appellant.

9. As regards the recovery of the 30-bore pistol on the disclosure and pointing of the appellant-Muhammad Hanif and positive report of Punjab Forensic Science Agency, Lahore (Exh.PH) is concerned, it is a prosecution case that on 02.05.2019, Muhammad Afzal S.I. (CW-6)-the investigating officer, collected two cartridges of pistol 30-bore from the place of occurrence through recovery memo (Ex. PC). The same were handed over to the Moharrar malkhana the same day. Shamsheer Ali, A.S.I. (CW-4), deposed during examination-in-chief that Muhammad Afzal, S.I. (CW-6), handed him two sealed parcels, said to contain empties and blood-stained cotton, for safe custody. On 10.05.2019, he (CW-4) handed over the two sealed parcels to Muhammad Afzal, S.I. (CW-6), for onward transmission to the office of the Punjab Forensic Science Agency, Lahore. Still, they were returned to him due to non-deposit at the office of the Punjab Forensic Science Agency. Muhammad Afzal S.I (CW-6)-the investigating officer deposed in his examination-in-chief that: -

“On 10.05.2019, I took two sealed parcel said to contain empties and blood stained earth from

Moharrir for its onward transmission to the office of PFSA but to paucity of time had not deposited in the office of PFSA and same was handed over to Moharrir. On 13.05.2019, I deposited two sealed parcels said to contain empties and blood stained earth from Moharrir for its onward transmission to the office of PFSA.”

Shamsher Ali A.S.I (CW-4) deposed in his examination-in-chief that on 13.05.2019, the said parcels were again handed over to Muhammad Afzal S.I (CW-6), the investigating officer, for onward transmission, and he (CW-6) deposited the same in the office of PFSA. In the instant case, no evidence has been given that Shamsher Ali A.S.I (CW-4) made entries in Register No. 19 kept for the Malkhana. In addition, Muhammad Afzal S.I. (CW-6), the investigating officer, did not depose a single word that he recorded a statement under section 161 of the Cr.P.C. of Shamsher Ali A.S.I (CW-4) on 10.05.2019 to the effect that he (PW-6), the investigating officer, returned from PFSA and handed over the parcels to Shamsher Ali A.S.I (CW-4), who kept the same in safe custody. It is also necessary that when case property is re-deposited in the Malkhana, an entry in the Malkhana Register be made. A dire necessity has been cast upon the prosecution to produce in Court the abstract of the Malkhana Register to dispel any aura of skepticism seeping into the prosecution case, especially vis-à-vis the safe custody of the case property "being" re-deposited in the Malkhana. Therefore, in the present case, the provisions of Article 155 of the Qanun-e-Shahadat Order, 1984, would have no application. Pointing out the above depositions of the prosecution witnesses, it is evident that the prosecution did not prove that the empty parcel of the crime was kept in safe custody. Due to the lack of this evidence, it cannot be held that the alleged parcel of crime empty was re-deposited in the Malkhana, and its benefit will go to the accused. This creates doubt about the genuineness and safe custody of the crime empty recovered from the place of occurrence.

Besides, the inquest report (Exh.C.W.3/D) reveals that Muhammad Afzal, S.I. (CW-6), the investigating officer, secured blood-stained soil and a cartridge of a 30-bore pistol through recovery memos. This

fact is mentioned in column No. 23 of the inquest report (Exh.C.W.3/D), which was prepared at the THQ, Jaranwala, as per the prosecution case. It is the prosecution's case that from the spot, Muhammad Afzal S.I. (CW-6), the investigating officer, secured two cartridges of a 30-bore pistol.

10. It is also the prosecution's case that the appellant, Muhammad Hanif, was arrested by Muhammad Afzal S.I. (CW-6)-the investigating officer- on 17.05.2019. Muhammad Afzal S.I. (CW-6)-the investigating officer deposed during examination-in-chief that: -

“On 23.05.2019, I interrogated the accused in Police Station, and he disclosed qua concealment of pistol 30 bore. In pursuance of said disclosure accused took us at the chak No. 586 GB at his house and got recovered pistol, 30 bore concealed in trunk. I took the said pistol into possession vide recovery memo Exh.C.W.6/H and prepared site plan of place of recovery of pistol. Ex./C.W.6/J. I recorded statement of Ehsan Ali and Liaqat Ali in this regard. I handed over said pistol to Moharrir for keeping it in safe custody.”

On perusal of the recovery memo (Ex.CW-6/H), it reveals that the witnesses of the recovery memo were Ghulam Ahmad (PW-4) and Muhammad Hanif. Contrary to this, Muhammad Afzal S.I (CW-6), the investigating officer, deposed that the witnesses to the recovery were Ehsan Ali and Liaqat Ali. At the same time, Ehsan Ali 5226/C (CW-5) is the witness who escorted the dead body of Muhammad Amir Ramzan to the hospital for conducting the autopsy. In addition, Muhammad Afzal S.I. (CW-6)-the investigating officer-did not depose a single word that, along with a 30-bore pistol, four live bullets were also recovered. At the same time, perusal of the recovery memo (Ex.CW-6/H) reveals that upon unloading the pistol, four live bullets were also recovered. Even otherwise, a perusal of the Firearms & Tool Marks Examination Report (Ex.PH) reveals that the parcel submitted regarding the allegedly recovered weapon contained only the pistol, but live bullets were not received at the office of the Punjab Forensic Science Agency, as mentioned in the recovery memo

(Exh.CW-6/H). The parcel is not the one, the investigating officer had prepared because, according to the recovery memo (Exh.CW-6/H), live bullets were also secured with a 30-bore pistol, whereas the Punjab Forensic Science Agency did not find four live bullets in the parcel, raising doubts about the parcel's relevance to this case. This led to the safe conclusion that safe custody of the said parcel has been compromised and not proven, which ultimately renders the report (Ex.PH) inconclusive and thus of no help to the prosecution. So far as the motive is concerned, the trial court has already disbelieved the same.

11. Given the difficulty in relying on the testimonies of PW-1 and PW-2 and for other reasons enumerated hereinbefore, I am persuaded that the prosecution failed to prove its case against the appellant beyond any shadow of a doubt, due to many inconsistencies in the prosecution's story. Accordingly, the conviction and sentence recorded by the trial court cannot be sustained. Reliance has been placed on the case reported as “Muhammad Akram v. The State” (2009 SCMR 230), wherein the Hon’ble Supreme Court of Pakistan held that:

“The nutshell of the whole discussion is that the prosecution case is not free from doubt. It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

12. I, therefore, accept Criminal Appeal No. 81569-J of 2021, filed by the appellant, Muhammad Haneef, son of Ghulam Muhammad, in toto. As a result, the conviction and sentence recorded by the learned trial court vide judgment dated 30.11.2021 are set aside. The appellant, Muhammad

Hanif, son of Ghulam Muhammad, is ordered to be acquitted of the charge in the private complaint filed under Sections 302/395/109/148/149 PPC, registered at Police Station City, Jaranwala, District Faisalabad. The appellant, Muhammad Hanif, son of Ghulam Muhammad, is directed to be released forthwith, if not required in any other case.

(AALIA NEELUM)
CHIEF JUSTICE

*This judgment was dictated,
pronounced on 02.06.2026,
and signed after completion
on 08.06.2026.*

Ikram*